

**SYNTHETIC TRAINING RECORD — FICTIONAL PARTIES, PEOPLE,
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BE-214 Cold-Chain Statement of Work

Statement number SOW-BE214-VAL-04, executed August 19, 2024 under Master Logistics Services Agreement BE-GHL-MLS-2023-1101. The litigation copy accompanied the complaint on December 2, 2024 in Civil Action No. SYN-WDNC-24-CV-0520.

Blue Ember Biologics, LLC engages Granite Heron Logistics, Inc. to provide a dedicated deep-frozen movement for BE-214 validation material. The service includes origin verification, continuous refrigerated custody, a controlled stop at Granite Heron's Fletcher facility if operationally necessary, destination tender, environmental monitoring, and delivery of the complete shipment file.

The planned payload is validation lot BE214-VL-2409A. Its status as development material does not reduce the documentation requirement because the lot is intended to support process validation. Granite Heron acknowledges that an unauthorized temperature condition may impair that intended use even if packaging remains sealed and no vial is visibly broken.

This statement defines the program-specific service. The quality agreement and release specification provide additional controls. Commercial and legal terms not changed here remain governed by the master agreement. The parties' signatures confirm that responsible operations and quality personnel reviewed the scope before acceptance.

Service lane and facilities

The origin is Solstice Gate Analytics, 61 Pelham Lab Way, Greenville, South Carolina 29615. The destination is Blue Ember Biologics, 1847 Cinder Ridge Parkway, Asheville, North Carolina 28803. Granite Heron may use its controlled facility at 802 Granite Heron Way, Fletcher, North Carolina 28732 for a short operational hold, provided environmental control remains uninterrupted.

The anticipated pickup date is September 12, 2024, with the exact appointment stated in the rate confirmation. Delivery is required the same day unless Blue Ember authorizes a change. The carrier shall select a route and departure time reasonably calculated to meet the window while allowing safety compliance.

The service is dedicated: no incompatible freight, unauthorized cross-dock, or unrelated delivery may share the controlled compartment. The payload shall remain inside the assigned qualified trailer during an ordinary staging stop. If transfer becomes necessary, Granite Heron must use an equal-capability controlled space and record each handoff.

Traffic or weather may justify a route change but does not suspend monitoring. Dispatch shall advise the listed contacts of a material delay. A late arrival alone does not authorize opening the shipper, changing the setpoint, or substituting equipment without documenting the reason and protective measures.

Payload and packaging configuration

The expected shipment consists of sealed BE-214 vials arranged in qualified insulated shippers with tamper-evident closures. Solstice Gate Analytics will place the designated logger in the monitored payload position and provide certificate of conformance COC-BE214-091224 at handoff. The carrier need not inspect individual vials and shall not break a shipper seal.

At pickup, the driver will compare lot number, shipper count, seal identifiers, destination, and temperature instruction against the custody form. Any mismatch must be resolved before signing. If exterior moisture, puncture, displacement, or closure damage is visible, the driver will photograph it and obtain an origin notation.

Blue Ember represents that the selected packaging is suitable for the planned lane when used with continuous trailer refrigeration. That representation does not authorize loss of trailer control. Granite Heron accepts responsibility for the refrigeration and power transitions within its custody; Blue Ember retains responsibility for formulation and undisclosed internal characteristics.

The payload may not be placed beside a heat source or directly in a discharge pattern inconsistent with the qualified load plan. Tie-downs must prevent movement without crushing the insulated containers. Door openings shall be limited to those necessary for safe custody or delivery.

Assigned equipment and environmental limits

Granite Heron will provide a deep-frozen trailer capable of maintaining a minus-seventy-degree-Celsius operating setpoint. The acceptable payload band is minus eighty through minus sixty degrees Celsius, as stated in Release Specification BE214-RS-03, Revision 3. No unlisted grace period or averaging convention applies.

Before loading, the driver shall complete a functional inspection and confirm adequate fuel, alarm operation, airflow, and current maintenance status. Dispatch will record the tractor and trailer identifiers in the final custody file. Electrical standby may be used during staging only after personnel verify that the refrigeration unit remains powered and stable.

The service plan calls for dedicated tractor GH-4821 and trailer TR-7714, subject to an equal-or-better emergency substitution documented before use. A substitution must not change the temperature range, monitoring frequency, or response obligation. Granite Heron will notify Blue Ember if an equipment concern arises before pickup.

If the setpoint cannot be maintained, personnel shall prioritize restoring safe control and notifying quality contacts. They may move the sealed shipper into qualified backup storage when that step reasonably reduces exposure. The carrier shall not rely solely on ambient weather to preserve frozen material.

Monitoring device and alarm response

The primary shipment logger is a CryoTrace CTX-9. Its serial number will be confirmed at origin; the expected device is CTX9-44721. The logger's clock must be synchronized to Eastern Daylight Time for the September movement, and the export must retain the original sampling sequence.

Granite Heron will associate the shipment with an active frozen-biologics response profile. Dispatch and the driver shall treat a reading above minus sixty or below minus eighty degrees as an exception requiring immediate review. A local refrigeration display warning also requires action even if remote telemetry has not arrived.

The first responder shall note the alarm time, location, observed temperature, refrigeration state, and step taken. Blue Ember's primary quality contact is Dr. Mira Solis through the controlled contact list. If she cannot be reached within ten minutes, the responder shall use the secondary number supplied at pickup and contact Solstice Gate Analytics when origin support may protect the load.

Recovery of the displayed temperature does not end the reporting duty. Granite Heron must retain the full data curve, document the maximum reading and duration, and request product disposition. Only Blue Ember's quality organization may authorize continued use of an affected lot.

Pickup and delivery procedure

At the Greenville appointment, origin staff will present the sealed shipment, certificate, logger identifier, and custody record. Granite Heron's driver will sign the time custody begins and record trailer condition. Departure should occur promptly after loading, with any hold longer than fifteen minutes explained in the route log.

The vehicle may enter the Fletcher facility for planned operational staging. Before shutting down tractor power, the responsible person must confirm an alternate refrigeration source is engaged and observe that the unit remains at setpoint. The time of arrival, source transition, verification, departure, and any intervention shall be entered contemporaneously.

At Asheville, Blue Ember's receiving team will verify seals and sign physical receipt. It may download the logger before accepting quality status. A quarantine notation does not amount to rejection of delivery service, and an unqualified signature does not waive a concealed temperature claim.

Granite Heron will provide the final custody packet within one business day. It shall include pickup and delivery signatures, stop chronology, equipment record, environmental output, any alarm or corrective note, and the rate confirmation. Material omissions must be identified rather than silently reconstructed.

Deviation management

Any measured excursion, refrigeration interruption, unexplained data gap, broken seal, custody uncertainty, or significant delay is a deviation under this statement. The driver must protect the load first, then contact dispatch and the named quality contacts. Granite Heron will open an internal investigation and give Blue Ember a preliminary account before the next business day ends.

The preliminary account should distinguish verified timestamps from estimates. It will identify personnel, location, equipment condition, alerts, communications, and actions. Granite Heron shall preserve control-unit data, work orders, photographs, and the logger export. Later correction of an error must leave the original entry traceable.

Blue Ember will quarantine affected material and assess the release specification. When reasonably possible, it will share a concise scientific basis for disposition. Granite Heron may provide information and challenge claimed causation but may not release the lot unilaterally.

Corrective action may include retraining, profile correction, maintenance, or revised staging procedure. Completing corrective action does not resolve damages. Similarly, Blue Ember's rejection does not determine the legal amount recoverable. The parties will cooperate in a prompt factual investigation while reserving their respective contract positions.

Charges and shipment protection

The dedicated line-haul and controlled-service charge will appear in purchase order BE-PO-240819-2147 and Rate Confirmation RC-240912-087. Waiting time is billable only after the included allowance and must be supported by arrival, release, and cause records. An emergency expense requires documentation and should be approved in advance when product protection permits.

Blue Ember selects the enhanced declared-value option described in the master agreement for this validation movement. The selected amount and premium are stated in the purchase order. This selection replaces any default cargo limit for proven direct loss but does not fix the value of a claim or concede a delay category.

Granite Heron confirms that cargo and commercial insurance required by the master agreement will remain in force on the shipment date. Certificates may be supplied upon request. Insurer involvement does not change the carrier's handling duties or Blue Ember's obligation to avoid duplicate recovery.

Each company will promptly disclose credits and reimbursements attributable to the same expense. Ordinary development costs remain outside the transport charge. Reasonable emergency protection, replacement logistics, and other claimed consequences will be evaluated under the causation, foreseeability, certainty, and mitigation provisions of the master agreement.

Responsibility matrix and contacts

Solstice Gate Analytics is responsible for preparing the lot, using the approved shipper, starting the designated logger, and tendering the certificate and custody form. Blue Ember is responsible for the specification, release decision, destination readiness, and program-level quality contacts. Granite Heron controls vehicle selection, refrigeration continuity, route execution, staging, alarm response, custody documentation, and delivery.

Dr. Mira Solis is Blue Ember's program and urgent quality contact. Granite Heron's corporate service representative is Adrian Locke. Tess Holloway, Transport Operations Manager, supervises the Fletcher controlled-transport process and is the escalation manager for an operational exception. Contact numbers are maintained in the controlled routing sheet exchanged separately to avoid obsolete numbers in this statement.

Only an authorized quality representative may approve a temperature deviation for use. A driver or salesperson may convey information but cannot bind Blue Ember to release affected material. An emergency protective instruction from any listed contact should be followed when reasonable and documented for later confirmation.

The parties will hold a readiness call before the first BE-214 movement. They will confirm appointments, equipment, setpoint, logger, escalation route, shipper count, destination staffing, and expected record delivery. Failure to conduct the call does not excuse an otherwise accepted duty.

Acceptance and signatures

This statement begins upon signature and remains effective for the identified validation shipment and any expressly added movement. A repeat shipment requires a new purchase order and route confirmation. Changes to temperature, lot, origin, destination, or declared value require written approval by both companies.

The master agreement remains fully operative. Quality Agreement QA-BE-GHL-017 and Release Specification BE214-RS-03, Revision 3, are incorporated for handling and disposition. Purchase order BE-PO-240819-2147 will authorize the validation-lot charge. No inconsistent carrier tariff silently overrides these negotiated controls.

The signers acknowledge the scientific importance of documented compliance without guaranteeing the BE-214 program's success. They also acknowledge that later questions about physical effect, intended use, replacement timing, recoverable loss, and mitigation remain governed by proof and the integrated agreement.

Blue Ember Biologics, LLC

Dr. Mira Solis, Chief Operating Officer

Signed August 19, 2024

Granite Heron Logistics, Inc.

Adrian Locke, Vice President, Controlled Transportation

Signed August 19, 2024

This copy was attached to the complaint filed December 2, 2024. The filing event does not revise the August 19 execution date or the earlier master agreement.